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|   |                                                            | <p>Share B. The opposition does not cite any statutory or case authority.</p> <p>Pursuant to Probate Code section 17206, "[t]he court in its discretion may make any orders and take any other action necessary or proper to dispose of the matters presented by the petition, including appointment of a temporary trustee to administer the trust in whole or in part." Under that authority, the court <b>GRANTS</b> Jill's motion and makes the following orders, effective immediately:</p> <ol style="list-style-type: none"> <li>1. Any and all authority of Kimberly Zor Shaw to act as Trustee of the Stanley Joseph Zor and Elaine J. Zor Living Trust, as amended (the Trust) is suspended.</li> <li>2. Thomas Trevor Murphy is appointed Interim Trustee of the Trust.</li> <li>3. Kimberly Zor Shaw is ordered to turn over to Murphy any and all property of the Trust, including all assets as well as books, records, documents, and any information necessary to access and marshal Trust property/assets.</li> <li>4. Murphy may not spend Trust assets to pay his own trustee fees or attorney fees without prior court approval. Neither may he sell, encumber, or otherwise transfer title to any Trust real property without prior court approval.</li> </ol> <p>As Mr. Murphy is not named as a trustee in the Trust instrument, a bond is required. The parties should be prepared to address a date and briefing schedule for a bond review hearing.</p> <p>The court notes that this ruling should not be taken in any way as a finding applicable to the pending petition or to the issue of who should be appointed as permanent successor trustee if Kimberly Zor Shaw is permanently removed as trustee.</p> <p>Petitioner is directed to give notice.</p> |
| 2 | <p><b>Aguirre – Trust;</b><br/><b>30-2025-01486818</b></p> | <p><b>MOTIONS TO COMPEL</b></p> <p>Petitioner Steven M. Aguirre's Motion to Compel Responses and/or Further Responses to Requests for Admission (Set One) on Braidee Foote (ROA 195) is <b>DENIED</b> as moot regarding the request for responses and further responses. The court reserves its ruling on the request for sanctions as set forth below.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |

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|   |                                                 | <p>Petitioner Steven M. Aguirre’s Motion to Compel Responses and/or Further Responses to Requests for Production (Set One) on Braidee Foote (ROA 203) is <b>DENIED</b> as moot regarding the request for responses and further responses. The court reserves its ruling on the request for sanctions as set forth below.</p> <p>Petitioner Steven M. Aguirre’s Motion to Compel Responses and/or Further Responses to Special Interrogatories (Set One) on Braidee Foote (ROA 195) is <b>DENIED</b> as moot regarding the request for responses and further responses. The court reserves its ruling on the request for sanctions as set forth below.</p> <p>The three motions to compel were filed on March 6, 2026 after 7:00 pm—one day after further supplemental responses were served to each of the subject sets of discovery. Accordingly, the motions were moot from the time of filing as to any request for an order compelling further responses.</p> <p>However, the request for sanctions remains an open issue. The parties should be prepared to address the issue of sanctions at oral argument.</p> |
| 3 | <b>Connolly – Probate;<br/>30-2026-01538097</b> | <b>MOTION TO STRIKE</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 4 | <b>Street – Trust;<br/>30-2024-01378180</b>     | <p><b>MOTION TO ENFORCE</b></p> <p>Richard James Vanderpool’s Motion to Enforce April 22, 2016 Settlement Agreement (ROA 145) is <b>DENIED</b>.</p> <p>Pursuant to Code of Civil Procedures section 664.6 (§664.6), James moves to enforce a settlement agreement entered between himself and Petitioners Chelsea Vanderpool and Courtney Vanderpool on April 22, 2016 (the Settlement). (Because the parties share a surname, the court refers to them by their first names. No disrespect is intended.)</p> <p>The Settlement, which resolved prior litigation between the parties, reads in full: “Respondent shall create an irrevocable trust of which Petitioners shall be the sole beneficiaries. He shall transfer the Lemon Street apartment houses to that trust. Net income of the trust shall be paid to the beneficiaries in equal shares not less frequently than quarterly. The principal shall be distributed to the</p>                                                                                                                                                                              |